

26SMCV01214 26SMCV01214

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Division: Civil Law and Motion

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The court will inquire.

The court had been informed that the parties had settled their differences on a global level. If that is the case, then this case would be resolved as well and there is no reason for the court to rule. If the settlement has fallen apart, then the court will ask the status of the DV case. The court's understanding is that the DV hearing had been taken off calendar due to the mediation and potential settlement, but that until the settlement becomes final, the DV is pending although not calendared. One would think that if the settlement fell apart, the DV would be speedily restored to the calendar.

The court notes that the DV case and the instant case have a lot of similarities. Many of the instances of abuse that underlie the DV case are at the heart of the instant case. But even so, the cases are not the same. First, a DV case typically is forward looking. It does not award damages for the injury; it results (if successful) in an injunction to stop any further acts. While one supposes that this court could also issue an injunction, the court agrees with the defense that the better place for that is the DV court—which can and will hear the case very speedily and issue appropriate relief if warranted. Where the DV case is going to be tried very soon, it makes sense to abate this case because the timing will be so short and the court would not want the issues or procedures in this case to interfere with the DV case. But “abate” means something different to this court than it does to defendant. The court understands that if there is going to be a DV trial in a few weeks, it probably makes some sense to let that trial go forward and pause this case to so allow.

Otherwise, this court runs the risk of interfering with the DV matter through discovery issues or the like.

But if the timing is not like that, then there is no reason in “abatement” for this court to stay its hand.

Trust the court on this. The trial in this case will not occur until long after the DV case has been tried, and the court has various tools available to it to ensure that there are not inconsistent judgments. Further, while the issues in the DV case and this case are very similar (as to the facts giving rise to the actions), they are not identical.

There is no “concurrent jurisdiction” problem. That is another way of saying abatement, as a practical matter. The Family Law action in no way would trigger the doctrine.

The DV matter might, but the court discussed that above.

And finally, there is no reason to abate the defamation cause of action. Or at least the court cannot see it.

So the court will inquire as to the status of the settlement. If the settlement has fallen apart, the court will inquire as to the DV matter and the timing of that case. The court, as a general matter, does view that as the far better avenue for injunctive relief. Accordingly, as a practical matter, the court will STAY this case for a short time to allow the DV case to be tried if a trial is on the horizon other than as to the defamation issue. If not, the court will inquire as to why not.